

# ChemCorp Industries S.A.

14 Rue des Réactifs, 69100 Villeurbanne, France

## PURCHASE ORDER

No. BC-2024-0142

Date: 2024-01-22

### SUPPLIER

#### BASF SE

Carl-Bosch-Str. 38

67056 Ludwigshafen, Germany

Contact: Dr. Klaus Weber — k.weber@basf.com

Standard lead time: 10 working days

### REQUESTED DELIVERY

Requested date: 2024-02-05

#### Delivery address:

Villeurbanne site — Warehouse B, dock 3

### TERMS

Incoterms: DDP Villeurbanne

Payment: 60 days end of month

### ORDER DETAILS

| Ref.               | Description                         | Quantity | Unit  | Unit price (€) | Amount excl. VAT (€) |
|--------------------|-------------------------------------|----------|-------|----------------|----------------------|
| EG-999P            | Ethylene glycol 99.9% polymer grade | 5.0      | tonne | 780.00         | 3,900.00             |
| MeOH-T             | Technical methanol 99.9%            | 10.0     | tonne | 420.00         | 4,200.00             |
| DEG-99             | Diethylene glycol (DEG)             | 3.0      | tonne | 690.00         | 2,070.00             |
| Subtotal excl. VAT |                                     |          |       |                | 10,170.00            |
| VAT 20%            |                                     |          |       |                | 2,034.00             |
| TOTAL incl. VAT    |                                     |          |       |                | 12,204.00            |

### SPECIAL INSTRUCTIONS AND NOTES

Delivery required between 07:00 and 16:00. Book a slot on 04 72 XX XX XX. Bolted tanker mandatory for MEG and DEG. ADR documents in French are mandatory.

### APPROVAL AND SIGNATURES

| Prepared by                          | Approved by                              | Received and accepted by the supplier |
|--------------------------------------|------------------------------------------|---------------------------------------|
| Mr Alain Rousset, Purchasing Manager | Ms H       Marchand, Operations Director |                                       |
| Signature:                           | Signature:                               | Signature:                            |
| Date:                                | Date:                                    | Date:                                 |
| Stamp:                               | Stamp:                                   | Supplier stamp:                       |

## Purchase Order BC-2024-0142 — General Purchasing Conditions

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### Art. 1 — Purpose and scope

These general purchasing conditions (GPC) apply to all orders placed by ChemCorp Industries S.A. with its suppliers. They prevail over any general terms of sale issued by the supplier unless an express written derogation is signed by an authorised representative of ChemCorp Industries. Receipt of this purchase order by the supplier constitutes acceptance of these GPC.

### Art. 2 — Prices and revision

The prices stated are firm and final until the delivery date, unless a specific indexation clause is stated on the purchase order. Any price revision must be the subject of a written amendment approved by the ChemCorp Industries purchasing department before execution. Prices are stated excluding VAT, with duties and taxes included under the Incoterms stated.

### Art. 3 — Delivery and transfer of risk

The delivery lead times stated are binding and constitute an essential element of the order. Any delay not notified 72h in advance engages the supplier's liability. Risk transfers according to the Incoterms 2020 specified. Delivery must be accompanied by a delivery note, the certificates of analysis, the safety data sheets (SDS) and ADR documents where applicable.

### Art. 4 — Quality and inspection on receipt

All products delivered must conform to ChemCorp Industries specifications and to the approved product data sheets. ChemCorp Industries reserves the right to reject any non-conforming batch, with return at the supplier's expense. A certificate of analysis (COA) per batch is mandatory. Counter-analysis samples are taken systematically and retained for 24 months.

### Art. 5 — Penalties and liability

In the event of an unjustified delivery delay, penalties of 0.1% of the value excluding VAT per day of delay will be applied, capped at 10%. In the event of a quality non-conformity, ChemCorp Industries reserves the right to terminate the order and claim compensation for the loss suffered, including attributable production losses. The supplier's liability may not be less than the value of the order concerned.

### Art. 6 — Regulations and compliance

The supplier warrants that the products delivered comply with the REACH Regulation (EC) No 1907/2006, the CLP Regulation No 1272/2008, and all regulations applicable in the countries of origin and destination. Safety data sheets must comply with Regulation (EU) 2020/878. The supplier undertakes to notify immediately any change of composition or regulatory classification.

### Art. 7 — Sustainability and CSR

ChemCorp Industries attaches particular importance to ESG criteria. The supplier undertakes to respect the principles of the United Nations Global Compact, to maintain an environmental management system (ISO 14001 or equivalent), and to respect fundamental rights at work (ILO conventions). A CSR audit may be commissioned with 15 working days' notice.

### Art. 8 — Confidentiality

All information exchanged under this order is strictly confidential. The supplier shall not disclose to any third party the technical characteristics, volumes, prices and negotiated terms without the prior written agreement of ChemCorp Industries. This confidentiality obligation continues for 5 years after the last delivery.

## Purchase Order BC-2024-0142 — Technical Specification

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### ChemCorp Industries quality requirements — chemical product suppliers

#### Mandatory documentation per delivery

- Certificate of Analysis (COA) — one per batch number, with the reference analytical methods
- Safety Data Sheet (SDS) no more than 3 years old, compliant with Regulation (EU) 2020/878
- ADR transport documents (transport document, instructions in writing, loader's declaration) where applicable
- Delivery note showing the ChemCorp order number, batch number, date of manufacture and best-before date
- Certificate of origin where required by customs conditions

#### Packaging and labelling requirements

- ADR-approved packaging per the 2024 approved packaging list (ref. ADR-2024-Q2)
- CLP-compliant labelling: pictograms, H and P statements visible and indelible
- Clear identification: batch number, date of manufacture, best-before date, net mass/volume
- Clean packaging, free of external residue, with leak-tight caps and valves
- Returnable packaging: IBCs to be returned within 60 days, drums within 90 days

#### Minimum analytical requirements (key parameters)

- Purity: GC or titrimetric method per the applicable EN or ASTM standard (to be specified)
- Water content: Karl Fischer (ISO 760 or ASTM E1064)
- Colour: APHA/Hazen (ASTM D1209) or Pt-Co
- Heavy metals: ICP-OES (EN ISO 11885) — Pb, As, Hg, Cd where applicable
- pH: per EN ISO 10523 for aqueous solutions
- Density: pycnometer or oscillating densitometer (ASTM D4052)

#### Traceability and non-conformity management

- Retention samples kept for a minimum of 24 months per batch
- Traceability system allowing a batch recall in under 4 hours
- Immediate notification to ChemCorp Industries of any specification deviation identified after the fact
- Root cause analysis report (8D) within 10 working days for any quality return
- On-site audit access granted with 15 days' notice; an annual quality audit is planned